



U.S. Department
of Transportation

Research and
Special Programs
Administration

DOT-E 12147
(SECOND REVISION)

JUL 21 1999

400 Seventh Street, S.W.
Washington, D.C. 20590

EXPIRATION DATE: December 31, 2000

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Portland General Electric Company (PGE)
Trojan Nuclear Plant
Rainier, Oregon
2. PURPOSE AND LIMITATION:
 - a. This exemption authorizes the one time transportation in commerce of a reactor vessel from the PGE's Trojan Nuclear Plant in Rainier, OR to the US Ecology disposal facility near Richland, WA. This exemption authorizes the reactor vessel to be transported as an alternatively approved package for the transport of greater than an A₂ quantity of radioactive material which, when prepared and transported in accordance with the provisions of PGE's application and this exemption, provides a level of safety equivalent to that provided by the Federal Hazardous Materials Regulations for transportation in commerce. This exemption provides no relief from any regulation other than as specifically stated herein.
 - b. The safety analyses performed in development of this exemption only considered the hazards and risks associated with transportation in commerce.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: The list of packages authorized for shipment of greater than A₂ quantities of radioactive material found in § 173.416 in that it does not include packages which meet the applicable provisions of 10 CFR Part 71 but have not been certified by the Nuclear Regulatory Commission as Type B, Type B(U), or Type B(M).
5. BASIS: This exemption is based on the application of PGE dated July 19, 1999 which included an approval letter issued by the Nuclear Regulatory Commission dated July 19, 1999 and technical data submitted on June 1, 1999, June 10, 1999, and July 7, 1999. All documents were submitted in accordance with § 107.105 and the public proceeding thereon.

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6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous materials description -- proper shipping name	Hazard Class/ Division	Identi- fication Number	Packing Group
Radioactive material, n.o.s.	Class 7	UN2982	N/A

7. SAFETY CONTROL MEASURES:

a. PACKAGING -

1. The activity levels, contamination levels and radionuclides present on and within the reactor vessel must conform to the package approval provisions issued by the Nuclear Regulatory Commission in an July 19, 1999 letter and submitted by PGE on July 19, 1999.
2. The reactor vessel must be prepared and transported in accordance with the package approval provisions issued by the Nuclear Regulatory Commission in a July 19, 1999 letter and submitted by PGE on July 19, 1999.
3. The quality assurance requirements of 10 CFR 71, Subpart H, applicable to the design, fabrication and use of packaging for radioactive materials must be met.

- b. OPERATIONAL CONTROLS - The reactor vessel must be transported in accordance with the transportation plan which was identified and summarized in the exemption application. Prior to the commencement of the shipment, the transportation plan must be approved by the Oregon Department of Energy and reviewed by the United States Coast Guard, Marine Safety Office, Portland, Oregon.

- c. MARKING - In addition to other required markings for Type B(U) packages, the reactor vessel must be plainly and durably marked "DOT-E-12147" in accordance with § 172.301(c).

8. SPECIAL PROVISIONS:

a. The shipper using the packaging covered by this exemption must comply with all provisions of this exemption, and all other applicable requirements contained in 49 CFR Parts 171-180.

b. The reactor vessel must be labeled, and placarded in accordance with the provisions identified for Type B(U) packages.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle and vessel.10. MODAL REQUIREMENTS: A copy of this exemption must be carried aboard each vessel or motor vehicle used to transport the reactor vessel covered by this exemption.11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by § 107.601 et seq., when applicable.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by §§ 172.700 through 172.704.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (Sections 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS,

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in writing, of any incidents involving the package and shipments made under the terms of this exemption.

Issued at Washington, D.C.:



Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

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(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

Copies of exemptions may be obtained from the AAHMS, U.S. Department of Transportation, 400 7th Street, SW, Washington, DC 20590-0001, Attention: Records Center, 202-366-5046.

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